IN THE DISTRICT COURT OF GHANA, NGLESHIE AMANFRO DISTRICT COURT HELD ON 30TH JUNE, 2025 BEFORE HER WORSHIP EMELIA K. ABRUQUAH ESQ., (MRS)

SUIT NO: GR/NGA/DC/A8/1/2025

GEORGE YAO ANSONG **PLAINTIFF**

VRS

CHARLES ARHIN **DEFENDANT**

PLAINTIFF **PRESENT**

DEFENDANT **PRESENT**

JUDGEMENT

The Plaintiff caused the issuance of the Writ of Summons to commence this action on 22nd October, 2024 against Defendant for the return or to produce the Plaintiff's vehicle with Registration Number GX 2547-21, in the alternative, Defendant to pay the current market value of the vehicle.

Plaintiff filed statement of claim in which he stated that he is the owner of Kia vehicle (Abosokai Hgjet) with Registration Number GX 2547-21. Plaintiff averred that about six months ago, the defendant came for his vehicle to work with and to render weekly sales of GHC600.00. Plaintiff averred that on 20TH October,2024, the defendant came to inform him that the vehicle was stolen. That he told the Defendant to be parking the vehicle in his house but he insisted and requested with a flimsy excuse that his house was far from where he lives so he

should be allowed to be keeping the car and bring it only at the weekends for inspection when bringing the weekly sales.

In his statement of defence filed on 3rd December, 2024, the Defendants averred that he usually park the vehicle at his residence and woke up that morning and realised that the vehicle has been stolen. He stated that he reported to the police and also informed the Plaintiff and that he is seriously looking for the car. He indicated that he pleaded with the Plaintiff because of the distance between where he lives and that of the plaintiff to be allowed to be keeping the car and present it over the weekends and he agreed.

Issues

From the foregoing the only issue that calls for determination is:
Whether or not the plaintiff is entitle to his claims.

Evaluation of Evidence and Legal Analysis

It is the duty of a Plaintiff to prove his case for a determination to be made in his/her favour. A party who raises issues essential to the success of his/her case assumes the onus of proof and as such a person who alleges, whether a Plaintiff or a Defendant, assumes the initial burden of producing evidence. It is only when such a person has been successful in producing evidence that the other party will be required to lead rebuttal evidence, if need be. In the case of **T. Chandiram v. Tetteh [2018] 120 GMJ 112 @ 147 C.A**, Her Ladyship Agnes M. A. Dordzie, J.A (as she then was) noted on the standard of proof in civil cases as follows:

> "[T]he standard of proof in a civil suit is placed on the 'balance of probabilities. Section 12 (2) of the Evidence Act defines it as follows: "Preponderance of the probabilities" means that degree of certainty of belief in the mind of the tribunal of fact or the court by which it is convinced that the existence of a fact is more probable than its non-existence."

Again, in the case of **Agbosu v Kotey; In Re Ashalley Botwe Lands [2003-2004] SCGLR 420,** His Lordship Brobbey, JSC (Rtd.) noted:

"The effect of sections 11(1) and 14 and similar sections in the Evidence Decree 1975 may be described as follows: A litigant who is a Defendant in a civil case does not need to prove anything. The Plaintiff who took the Defendant to court has to prove what he claims he is entitled to from the Defendant... at the same time if the court has to make a determination of a fact or of an issue, and that determination depends on the evaluation of facts and evidence, the defendant must realize that the determination cannot be made on nothing. If the Defendant desires a determination to be made in his favour, then he has a duty to help his own cause or case by adducing before the court such facts or evidence that will induce the determination to be made in his favour…" In Ackah Vrs. Pergah Transport Ltd. [2010] SCGLR 728, the Supreme Court held that it is a basic Principle of the law of evidence that a party who bears the burden of prove is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and includes the testimonies of the parties and material witnesses, admissible hearsay evidence, documentary evidence and other things or real evidence without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the proof mind of the court. In the instant case, the burden lies on the plaintiff to adduce sufficient evidence to convince the court that his outstanding claim is more probable than not.

The Plaintiff therefore has the responsibility of adducing evidence which is sufficient enough to avoid a ruling against him on the issues before the Court. See also the following cases:

Takoradi Flour Mills vs. Samir Faris [2005-2006] SCGLR 882 @ 900

GIHOC Refrigeration & Household vs. Jean Hanna Assi (2005-2006) SCGLR 458

Tagoe v. Accra Brewery [2016] 93 GMJ 103 S.C

Deliman Oil v. HFC Bank [2016] 92 GMJ 1 C.A.

Baker-Woode v Nana Fitz [2007-2008] SCGLR 879

Ababio v Akwesi III [1994-95] GBR 774

Air Namibia v. Micon Travel [2015] 91 GMJ 173 @ 191 C.A

The Plaintiff herein therefore had the duty in the course of the proceedings to produce sufficient evidence in respect of his claims on a balance of probabilities for a determination to be made in his favour. See also the case of **In Re Krah (Decd.); Yankyeraah v Osei-Tutu & Another [1989] DLSC 601**.

Plaintiff's Case:

In his evidence-in-chief filed on 10th December, 2024, the Plaintiff testified that he gave his Abosokai Hyjet car with Registration Number GX2547-21 to the defendant to be working for him at an agreed weekly sale of GHC600.00. He testified that he wanted the car to be parked at his place but the defendant pleaded that due to the distance between his house and that of the defendant, he should be allowed to keep it and bring it only on weekends when he brings the weekly sales. According to the Plaintiff, the defendant only worked with the car for six months and called him on 20th October 2024 to inform him that the car has been stolen and that the defendant told him he has reported the issue to the police. He added that a week before the purported theft, there was an arrangement for the defendant to take him to a funeral on 19th October 2024 and on the morning of the 19th of October, 2024, plaintiff called the Defendant several times but he refused to pick his calls and only called later when he had left to inform him that the phone was in the car. That the purported theft of the car is untrue and that it was a concocted story made by the defendant to cover up his intention to dispose of Plaintiff's car. Plaintiff testified further that he is unemployed and currently not in good health and depends on only that car for his livelihood.

Defendants' Case:

The Defendant filed his witness statement on 17th December, 2024. In it he testified that one Ekow introduced him to the Plaintiff and the Plaintiff gave him the car keys through the said Ekow. He testified that though the Plaintiff had wanted him to be parking the car at his place,

but because of the distance, it was finally agreed that he brings the car to show to him at his residence on weekends when he brings the weekly sales. According to the Defendant, he worked with the car on Saturday, 20th October, 2024 and came and parked it inside the walled compound house where he lives with several tenants and went to sleep. The next day he woke up and the car was not there so he informed the Plaintiff, Ekow the one who linked him up with the Plaintiff and he also went to report at the police station. He said he was not negligent as he parked it in his residence and locked it and that he is making every effort to retrieve it.

Analysis

I now proceed to determine the sole issue which is whether or not the Plaintiff is entitle to his claims. The Plaintiff told the court that he had told the Defendant to be bringing the car after the day's work and it was the Defendant who pleaded with the Plaintiff to allow him be keeping the car and bring it at the weekends to show to the Plaintiff anytime he was bringing the weekly sales. It is worth stating that this evidence of the Plaintiff was corroborated by the Defendant's own evidence where he stated that he pleaded with the Plaintiff and after deliberations, the Plaintiff agreed for him to be keeping the car and bring it at the weekends when he is coming with the weekly sales. With this, it does not matter whether the key to the car was handed over to him directly or through somebody, he admitted that he was in possession of the car for over six months and the car was stolen in his possession. In that regard, the Defendant herein acted as a bailee of the car of the Plaintiff in his possession and he ought to have acted reasonably to preserve it, and keep the car in a manner as if it was his own so that no one can easily pick it without his knowledge. In the case of THE PROPRIETOR; MOK BEER BAR V.GADA [1979] GLR 35, the court held that it is the duty of a bailee to take reasonable care to keep and preserve the goods in his possession; it is his duty to exercise that degree of care which might reasonably be expected from a reasonable man in respect of his own goods; if he fails to exercise that degree of care he will have to pay for them when they are lost or destroyed. The court is of the opinion that the defendant knew he could keep the vehicle well that he demanded that the Plaintiff should allow him to keep and bring it at the weekends. After all, he could have decline the offer to drive Plaintiff's vehicle if the distance

was not convenient to him, he was not oblige to drive Plaintiff's car. He, the Defendant pleaded with the Plaintiff to keep the car, presupposes that he had a safe place to keep it, he can therefore not be heard telling the court that the car has been stolen. This act of the defendant towards the Plaintiff's car, the court believes amounts to negligence on his part as he was duty bound to take good care of the vehicle in his possession as if it was his. The court, having regard to the evidence adduced and based on the evaluation of the evidence done, finds that the Plaintiff has been able to discharge the burden of proof on him on the balance of the probabilities.

I therefore enter judgment in favour of the plaintiff to recover or for the return of his vehicle with Registration Number, GX 2547-21 in the possession of the Defendant. In the alternative, the Defendant is ordered to pay the current market value of the car.

I award costs of GHC 1,000.00 in favour of the Plaintiff.

H/W EMELIA K. ABRUQUAH (MRS)

(MAGISTRATE)